



PRIVATE & CONFIDENTIAL

DEBT COUNSELLOR REFERRAL AGREEMENT

LIFE INSURANCE

entered into by and between:

DC CREDIT PROTECT (PTY) LTD

(Registration Number: 2019/433826/07)

("hereinafter referred to as "DCCP")

FSP 51550

and

(Registration Number: _____)

(NCRDC Number: _____)

("hereinafter referred to as "the Debt Counsellor")

RECORDAL

WHEREAS DCCP provides Insurance Products in the Insurance and Financial Industry,

AND WHEREAS the Debt Counsellor provides Debt Counsellor services to the public,

AND WHEREAS the Debt Counsellor wishes to refer its clients to DCCP to take out and maintain insurance products,

AND WHEREAS Alivio Financial Services (Pty) Ltd with registration number 2018/540412/07 and FSP number 50575, is the Underwriting Managing Agent and provide all 5 Binder Functions on behalf of the Insurer.

NOW THEREFORE IT IS AGREED AS FOLLOWS:

1. INTERPRETATION

- 1.1. In this agreement, unless a contrary intention clearly appears, the following terms shall have the meanings assigned to them below and cognitive expressions shall have corresponding meanings.
 - 1.1.1. "agreement" means this Referral Agreement and any annexures, schedules and addendums attached hereto or incorporated herein;
 - 1.1.2. "day" means a calendar day;
 - 1.1.3. "effective date" means the date of signature of the last party signing this agreement;
 - 1.1.4. "referral fee" means the fee payable by Alivio Financial Services (Pty) Ltd to the Debt Counsellor in terms of clause 3 of this agreement, which is inclusive of VAT.
- 1.2. In this agreement, unless a contrary intention clearly appears, words importing:
 - 1.2.1. Any one gender includes the other gender; and
 - 1.2.2. The singular includes the plural and vice versa.
- 1.3. When any number of days is prescribed in this agreement, they shall be calculated exclusively of the first and inclusively of the last day unless the last day falls on a day which is not a business day, in which case the last day shall be the next business day.

2. DURATION OF THE AGREEMENT

This agreement shall commence on the effective date and shall continue for an indefinite period until terminated in accordance with the terms of this agreement. For this period, the Debt Counsellor undertakes to exclusively use DCCP for all its Credit Life and other related insurance policies.

3. REFERRAL FEE

3.1. Alivio Financial Services (Pty) Ltd will pay a referral fee to the Debt Counsellor in respect of new insurance policies placed with DCCP and existing portfolios transferred to DCCP.

3.1.1. Credit Life Insurance – The fee payable will be an amount equal to 40% of all premiums collected in respect of the Credit Life Insurance policies placed with our underwriters.

3.1.2. Assistance Income Protector – Refer to annexure A

3.1.3. Funeral – Refer to annexure A

3.2. The fee will become due and payable 45 days after an insurance policy has come into effect and thereafter on a monthly basis on or before the 15th of every month provided Alivio Financial Services (Pty) Ltd has received the premium in respect of the said policies.

3.3. Where any policy is cancelled and Alivio Financial Services (Pty) Ltd is obliged to refund any amounts received in regard to a policy, similarly the Referring Party shall be obliged to refund Alivio Financial Services (Pty) Ltd in respect of any such amounts received. These amounts may be deducted by Alivio Financial Services (Pty) Ltd from future payments to the Debt Counsellor.

4. ADDITIONAL ACTION

Each party to this agreement shall execute and deliver such other documents and do such other acts and things as may be necessary or desirable to give effect to the terms and provisions of this agreement.

5. CONFIDENTIAL INFORMATION

- 5.1. Confidential information of either party shall, for the purpose of this agreement include, without limitation, any technical, commercial, or scientific information, now-how, data, trade secrets, processes, designs, drawings, software programs, source code, specifications, formulae, systems, processors, marketing and business information generally, or any information of whatsoever nature associated with such party's business.
- 5.2. Each party acknowledges that other's confidential information is a valuable, special, and unique asset proprietary to such party and will treat it as such.
- 5.3. Each party agrees that they will not, during or after the course of their relationship and/or the term of this agreement, disclose the other party's confidential information to any third party for any reason or purpose whatsoever without the prior written consent of such party, save in accordance with the provisions of this agreement.

6. NON-SOLICITATION

Each party agrees that they will not, during or after the course of their relationship and/or the term of this agreement:

- 6.1. attempt to solicit and/or employ, directly or indirectly, any of the other party's employees, without the prior written consent of such party;
- 6.2. solicit any of the other party's clients and/or suppliers.

7. NON-CIRCUMVENTION

The parties hereby irrevocably agree, and guarantee to one another, that they shall not, directly, or indirectly interfere with, circumvent, or attempt to circumvent, avoid, by-pass, or obviate the other party's interest, or the interest or relationship between any of the parties with regards to their employees, their clients or customers, distributors, financial institutions, technology owners, developers or manufacturers, software partners or service level partners, to change, increase or avoid directly or indirectly payment of established or to be established fees, commissions,

or continuance of pre-established relationship or intervene in non-contracted relationships with any of the other party's clients or customers, manufacturers or technology owners or with intermediaries, entrepreneurs, or legal counsel, or relationships that by-pass one of the parties with any corporation, producer, technology owner, partnership, or individual revealed or introduced by one of the parties to one another in connection with Confidential Information, on in the process of the conclusion of this agreement, or any other agreement between the parties, or affiliates of the parties.

8. GOOD FAITH AND SUPPORT

- 8.1. This agreement is entered into for the mutual benefit of both parties and both parties undertake to take all reasonable steps to give effect thereto;
- 8.2. The parties recognise that the terms of this agreement should be carried out in good faith;
- 8.3. The Debt Counsellor undertakes that for the duration of this agreement it shall observe and perform the terms and conditions set out herein;
- 8.4. The Debt Counsellor shall not, make any misrepresentations or give any warranties in respect of DCCP's services;

9. TERMINATION OF AGREEMENT

- 9.1. This agreement will terminate:
 - 9.1.1. by mutual agreement between the parties reduced to writing and signed by both parties; alternatively
 - 9.1.2. by either party giving the other party 90 (Ninety) days' written notice thereof; alternatively
 - 9.1.3. at the election of the aggrieved party if the defaulting party fails to meet its obligations and fails to remedy such obligation within the specified time after receiving written notification demanding that the breach be rectified in accordance with clause 10.

10. BREACH OF TERMS AND REMEDY

10.1. In the event that either party ("the defaulting party") commits a breach of any of the terms of this agreement and fails to remedy such breach within 7 (seven) days of receipt of written notice to do so from the other party ("the aggrieved party") then the other party shall, without prejudice to any other rights which may be in law, be entitled to cancel this agreement and claim damages that the aggrieved party may have suffered as a result of such breach;

10.2. The defaulting party shall be held liable for legal costs on an attorney and own client scale.

11. FORCE MAJEURE

11.1. Neither of the Parties shall be liable for the failure to perform its obligations insofar as it is as a result of:

- 11.1.1. an impediment beyond its control;
- 11.1.2. it could not be reasonably expected to have taken the impediment and its effect upon a party's ability to perform into an account at the time of the conclusion of the agreement; and
- 11.1.3. it could not have reasonably been avoided or overcome the impediment or its effect.

11.2. An impediment as foresaid may come from events such as the following which list is not exhaustive; war, whether declared or not, civil war, civil violence, riots, armed revolution, acts of sabotage, natural disaster like violent storms, cyclones, earthquakes, tidal waves, floods or destruction by lighting, explosions, fires, boycotts, strikes, lockouts, and work stoppages, change of legislation or regulations.

11.3. Relief from liability for non-performance by reason of this clause shall commence on the time and date upon which a party seeking immunity gives the other a notice of the nature of the impediment relied upon and shall terminate on the date upon which that impediment ceases to exist.

12. DOMICILE AND NOTICES

12.1. The parties choose as their *domicilia citandi et executandi* their respective addresses set out in this clause for all purposes arising out of or in connection with this agreement at which addresses all processes and notices arising out of or in connection with this agreement, its breach or termination may validly be served upon or delivered to the parties.

12.2. For purposes of this agreement the parties' respective addresses shall be:

12.2.1. DCCP: Glen Manor Office Park, Building 5,
Office 4, 150 Frikkie de Beer Street
Menlyn
Pretoria
Gauteng
E-mail: info@dccp.co.za

12.2.2. Debt Counsellor:

E-mail: _____

or at such other address of which the party concerned may notify the other party in writing provided that no street address mentioned in this sub-clause shall be changed to a post office box or poste restante.

12.3. Any notice given in term of this agreement shall be in writing and shall:

12.3.1. if delivered by hand and signed for, be deemed to have been duly received by the addressee on the date of delivery;

12.3.2. if transmitted by email be deemed to have been received by the addressee on the date of successful despatch; unless the contrary is proved.

- 12.4. Notwithstanding anything to the contrary contained or implied in this agreement, a written notice or communication received by one of the parties from the other including by way of E-mail transmission shall be adequate written notice or communication to such party.

13. GENERAL

- 13.1. No variation, amendment or consensual cancellation of this agreement or any provision or term thereof or of any agreement, bill of exchange or other document issued or executed pursuant to or in terms of this agreement shall be binding unless recorded in a written document signed by a duly authorised representative from both parties.
- 13.2. No extension of time or waiver or relaxation of any of the provisions or terms of this agreement, bill of exchange or other document issued or executed pursuant to or in terms of this agreement, shall operate as an estoppel against either party hereto in respect of its right under this agreement, nor shall it operate so as to preclude either of the parties thereafter from exercising its rights strictly in accordance with this agreement.
- 13.3. Should any of the terms and conditions of this agreement be held to be invalid, unlawful, or unenforceable, such terms and conditions will be severable from the remaining terms and conditions which will continue to be valid and enforceable.
- 13.4. These terms and conditions, together with the annexures and attachments hereto, constitute the whole of the agreement between the parties relating to the subject matter hereof.
- 13.5. Neither party may assign this agreement without the express written consent of the other, and any such attempt or transfer without consent shall be void and of no effect.
- 13.6. The parties shall use their best endeavour to amicably resolve any disputes or claim concerning the scope, meaning, construction or effect of this agreement through a meeting of their respective senior management or executives.

13.7. This agreement does not constitute:

- 13.7.1. an employment agreement; nor
- 13.7.2. a joint venture agreement; nor
- 13.7.3. a partnership agreement; nor
- 13.7.4. an agency agreement; between the parties.

14. GOVERNING LAW

The governing law applicable to this agreement is the law of the Republic of South Africa.

15. JURISDICTION

The parties' consent to the non-exclusive jurisdiction of the High Court of South Africa, Gauteng Division, Pretoria.

ANNEXURE A - FEES PAYABLE IN RESPECT OF FUNERAL AND INCOME PROTECTOR

PRODUCT	Benefit Value	Retail Premium	Debt Counsellor Referral Fees
INDIVIDUAL FUNERAL	R 10 000,00	R 75 p/m	R 17 p/m
	R 20 000,00	R 105 p/m	R 20 p/m
	R 30 000,00	R 125 p/m	R 22 p/m

PRODUCT	Benefit Value	Retail Premium	Debt Counsellor Referral Fees
FAMILY FUNERAL	R 10 000,00	R 90 p/m	R 19 p/m
	R 20 000,00	R 130 p/m	R 22 p/m
	R 30 000,00	R 195 p/m	R 33 p/m

PRODUCT	Benefit Value	Retail Premium	Debt Counsellor Referral Fees
INCOME PROTECTOR ASSISTANCE BENEFIT	R5 000 for 6 months - Max R30 000	R75 p/m	R15 p/m
	R10 000 for 6 months – Max R60 000	R110 p/m	R20 p/m
	R15 000 for 6 months – Max R 90 000	R135 p/m	R25 p/m

PROTECTION OF PERSONAL INFORMATION ACT 4 OF 2013 (POPI ACT) AGREEMENT

PREAMBLE: Due to the changes / implementation of the new rules of the POPI Act which come / came into effect on the 1st of July 2021 there are certain compliance requirements that both The Responsible Party and The Operator must adhere to. To give effect to these new compliance regulations we are compelled to conclude an agreement between ourselves confirming our commitments as follows:

1. The Operator confirms that it processes Personal Information on behalf of The Responsible Party in terms of the services that it provides to The Responsible Party and that this POPI agreement is concluded in addition to any other principal agreement.
2. "Personal Information" shall have the meaning as ascribed to it in the Protection of Personal Information Act 4 of 2013 (POPI Act).
3. To comply with the POPI Act, The Operator hereby undertakes:
 - 3.1 To secure the integrity and confidentiality of the Personal Information that is provided by The Responsible Party by taking appropriate, reasonable technical and organizational measures to prevent the:
 - 3.1.1 loss of, damage to, or unauthorized destruction of the Personal Information.
 - 3.1.2 unlawful access to or processing of the Personal Information.
 - 3.2 To comply with the obligations in 3.1, you shall implement reasonable measures to:
 - 3.2.1 identify all reasonably foreseeable internal and external risks to protect the Personal Information that is received from The Responsible Party;
 - 3.2.2 establish and maintain appropriate safeguards against the risks that are identified in 3.2.1;
 - 3.2.3 regularly verify that the safeguards that are established in terms of 3.2.2 are effectively implemented;

3.2.4 ensure that the safeguards that are established in 3.2.2 are continuously updated in response to new risks or deficiencies in previously implemented safeguards; and

3.2.5 notify The Responsible Party immediately where there are reasonable grounds to believe that the Personal Information of a Data Subject (person whose personal information is concerned) has been accessed or acquired by any unauthorized person.

3.3 The Operator undertakes to ensure compliance with all other obligations imposed by the POPI Act, as amended from time to time.

4. This agreement shall be effective from the date of signature of this document by the party signing last in time.

5. By signing this document as The Operator, you agree to be fully bound by the provisions of this Agreement.

SIGNED AT _____ ON THIS _____ DAY OF _____ 20____

ON BEHALF OF THE DEBT COUNSELLOR duly authorised thereto:

FULL NAME

SIGNATURE

DESIGNATION

FULL NAME – WITNESS

SIGNATURE – WITNESS

SIGNED AT _____ ON THIS _____ DAY OF _____ 20____

ON BEHALF OF DC CREDIT PROTECT (PTY) LTD duly authorised thereto:

VIC HOOPS

CEO

SIGNATURE

SALES & RELATIONSHIP
MANAGER

SIGNATURE

EDUARD GREEFF
CSO

SIGNATURE